

18. 9:00 AM CASE NUMBER: N26-0379

CASE NAME: CLAIM OF:MARLOWE SMITH

***HEARING ON MINOR'S COMPROMISE**

FILED BY: SMITH, STEVEN

TENTATIVE RULING:

Parties to Appear. Counsel to present form(s) of order at the hearing.

Discovery Law & Motion

19. 9:01 AM CASE NUMBER: C23-02013

CASE NAME: DENNIS SANFORD VS. CHANNEL LUMBER CO.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION TESTIMONY BY GRS FUNDING, INC.**

FILED BY: CHANNEL LUMBER CO.

TENTATIVE RULING:

Parties to Appear.

20. 9:01 AM CASE NUMBER: C24-00356

CASE NAME: SUSAN SHINTAKU VS. CITY OF ANTIOCH

***HEARING ON MOTION FOR DISCOVERY TO COMPEL DEF CITY OF ANTIOCH'S FURTHER RESPONSES TO FORM INTERROGATORIES SET THREE**

FILED BY: SHINTAKU, SUSAN

TENTATIVE RULING:

Pursuant to the Court's Tentative Ruling on a related discovery motion set for hearing on June 8, 2026 and the Court's Order issued June 9, 2026, this motion has been CONTINUED by the Court to **August 31, 2026, 9:00 am**, in **Department 34**. The parties are admonished to review the Court's June 9th Order for additional requirements.

21. 9:01 AM CASE NUMBER: C25-00076

CASE NAME: KERI KLOSINSKI VS. KK CARGO, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEFENDANTS' BUSINESS RECORDS SUBPOENAS TO PLAINTIFF NIKI KLOSINSKI'S MEDICAL PROVIDERS**

FILED BY: KK CARGO, INC.

TENTATIVE RULING:

Defendant KK Cargo, Inc. ("Defendant") filed two motions to compel various medical providers' compliance with deposition subpoenas for production of business records on December 23, 2025 (the "Motions to Compel"). By the Motions to Compel, Defendant seeks production of medical records

relating to treatment records of plaintiffs Keri Klosinski and Niki Klosinski (“Plaintiffs”) pursuant to subpoena. The Motions to Compel were set for hearing on June 15, 2026.

Background

Defendant issued third party records subpoenas (the “Subpoenas”) to third parties seeking Plaintiffs’ medical records on September 3, 2025. This included ten subpoenas for the medical records of plaintiff Keri Klosinski and twenty subpoenas for the medical records of plaintiff Niki Klosinski. The scope of records for all Subpoenas was 01/01/2015 to present. See Separate Statement filed December 23, 2025 (“Separate Statement as to Keri Klosinski”), p. 1-8; Separate Statement filed December 23, 2025 (“Separate Statement as to Niki Klosinski”), p. 2-13. Defendant’s requests included, but were not limited to, the following records:

All documents and records stored in any format or method including, but not limited to, all medical records, intake forms, patient completed forms and/or documents, correspondence, all office records, emergency room records or reports, inpatient and outpatient charts and records, lien files, SOAP notes, pathology records and reports, lab reports, pharmacy and prescription records, physical therapy records, sign-in sheets, all description of exercises prescribed, documentation which indicate date and time of patient’s appointments, insurance documents, all radiology reports and readings, and any other documents maintained pertaining to the care, treatment and examination of the patient.

All itemized statements of the billing charges and/or consolidated statement of benefits, with diagnostic and procedure codes including all CPT and ICD-9/ICD-10 coding and all HCFA, UB04 and UB92 bills, to include the total charges private or governmental; any amounts written off by the provider, and any amounts that are the patient’s responsibility and explanation of benefits, payment history, records of any liens, any insurance billing or payments information, emergency room physicians bills and radiology billing from all sources, to include any computer generated billing or billing stored in any format and payment software that contains said information; and

COPIES of all original x-rays films, CT scans, MRIs and any other scans or images taken and/or maintained, including a comprehensive list of all dates and body parts of all films, CT scans, MRIs and all other images or scans provided. All images and films must be provided on CD if available.

Id.

Plaintiffs served written objections to the Subpoenas on September 25, 2025. See Plaintiffs’ Combined Opposition filed June 6, 2026 (“Plaintiffs’ Opposition”), ¶13.

Plaintiffs describe meet and confer efforts made between September 2025 and December 2025, with Plaintiffs requesting limitations on the requested records. The parties were unable to agree on setting limitations. See Plaintiffs’ Opposition, ¶¶14-15.

Plaintiffs allege that between October 2025 and November 2025 records were produced by the Subpoenas from at least three providers. See Plaintiffs’ Opposition, ¶14.

Defendant subsequently filed the Motions to Compel on December 23, 2025.

The Proof of Service attached to each Separate Statement filed December 23, 2025 reflect service of the

Motions to Compel on the respective medical providers, as well as Plaintiffs' counsel.

Plaintiffs filed an opposition on June 6, 2026.

Analysis

When a deponent fails to answer any question or to produce any document under the deponent's control that is specified in the deposition subpoena, the party seeking discovery may move the court for an order compelling that production. Code Civ. Proc. § 2025.480.

The California Constitution guarantees a right to privacy. Cal. Const., art. I, § 1. Where the right to privacy is implicated, courts weigh the loss of privacy against the "legitimate and important countervailing interests disclosure serves." *Williams v. Superior Court* (2017) 3 Cal.5th 531, 552. "The materials sought must be directly relevant to the issue of pain and suffering associated with the physical injuries petitioner sustained." *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1017.

Here, the claims arise out of a motor vehicle accident alleged to have occurred on or around June 10, 2024. See Complaint filed January 9, 2025 ("Complaint"), ¶15. Plaintiffs are alleged to have suffered "severe and permanent injury to the body and nervous system." *Id.* at ¶29. This includes but is not limited to neck, back, and shoulder pain as well as traumatic brain injuries for both Plaintiffs. See Plaintiffs' Opposition, ¶9.

The subpoenaed records are substantially similar for both plaintiffs. On one hand, they include records from providers who treated Plaintiffs in relation to the accident. On the other, they include medical providers who treated Plaintiffs unrelated to the accident.

The Court is inclined to grant the Motions to Compel in part, as to the treating providers from the accident. These records are clearly discoverable as the treatment of injuries alleged is directly relevant to the case. Plaintiffs have impliedly waived their right to privacy for treatment of injuries alleged in the cause of action. *Britt v. Superior Court* (1978) 20 Cal.3d 844, 863. Furthermore, Plaintiffs effectively concede the discoverability of these records. See Plaintiffs Opposition, ¶¶20-21. Although the scope for these records is broad, dating back to January 1, 2015, Plaintiffs report that these providers did not treat Plaintiffs prior to the accident. As such, this broad scope has no material impact on discoverability. For these reasons, the Court grants the motion to compel in part, as to records from treating providers related to the accident.

The Court is not inclined to grant the Motions to Compel as to medical records from non-treating providers, because the information put before the Court failed to establish good cause for production of records **to the extent specified** in the subject subpoenas. The Court notes that the Subpoenas sought the broadest possible scope of medical records relating to Plaintiffs going back to January 1, 2015, a date more than nine years before the alleged accident. Among other things, no distinction is made in the request between records relating to treatment for areas of the body reasonably implicated by the subject accident/injuries versus other matters such as mental health treatment. Defendant contends that plaintiff Keri Klosinski's pre-existing diagnosis of Systemic Lupus Erythematosus ("SLE") and plaintiff

Niki Klosinski's pre-existing diagnosis of Ehlers-Danlos Syndrome ("EDS") open the door to broader discovery into plaintiffs' medical history. See Separate Statement as to Keri Klosinski, p. 11; Separate Statement as to Niki Klosinski, p. 13. Defendant, however, does not offer any persuasive evidence of a sufficient nexus between those conditions and the injuries alleged by Plaintiff as a result of the subject accident. More importantly, even if such conditions might expand the scope of discovery of medical records, the Court certainly does not conclude that they justify the scope of the Subpoenas as presently framed as to non-treating medical providers. As such, any relation between the Plaintiffs' respective conditions and the injuries alleged is merely speculative and does not justify the scope of discovery sought.

While some more narrowly tailored scope of medical records production may well be discoverable, the Court is not inclined to compel a response to these Subpoenas as presently framed, as to non-treating medical providers.

Nonetheless, the parties are encouraged to meet and confer regarding a more narrow stipulation scope of production and other measures to protect privacy concerns such as a protective order for the distribution and use of any medical records.

As relates to sanctions however, in light of the foregoing, the Court concludes that sanctions are not appropriate or justified. See Code Civ. Proc. § 2025.480(j) ("The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.").

Disposition

The Court find and orders as follows:

1. The Motions to Compel are GRANTED IN PART, as to medical records from treating providers related to the accident.
2. The Motions to Compel are DENIED IN PART, as to medical records from providers unrelated to the accident.
3. The originals of any documents received pursuant to the Subpoenas from any provider outside of the scope of discovery permitted by this ruling including but not limited to records from John Muir, Lucile Packard, and Total Spine are hereby ordered to be surrendered to the Plaintiffs and any copies destroyed within fifteen (15) days of notice of entry of this order. Alternatively, if the parties agree, the parties may agree on a scope of records to be retained as an appropriate scope of production with Defendant confirming destruction of all other records from the provider.
4. Any and all sanctions requests are DENIED.

22. 9:01 AM CASE NUMBER: C25-00076

CASE NAME: KERI KLOSINSKI VS. KK CARGO, INC.

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH DEFENDANTS' BUSINESS
RECORDS SUBPOENAS TO PLAINTIFF KERI KLOSINSKI'S MEDICAL PROVIDERS

FILED BY: KK CARGO, INC.

TENTATIVE RULING:

See LINE 21 above.